

		pursuant to CCP section 1793.2, subdivision (d). (DMF No. 5-10.) Plaintiff did not meet Plaintiff's shifted burden to show a triable issue of material fact as to whether the offer was prompt or whether the offer was compliant with section 1793.2, subdivision (d). Plaintiff offered no evidence to show Defendant failed to comply or that Defendant's failure to comply was willful. (See, Civ. Code, § 1794, subd. (c).) Accordingly, Defendant's motion for summary judgment is granted. In light of this ruling, the Court declines to consider Defendant's alternative motion for summary adjudication. Defendant shall give notice.
103	2024-01438736 Stafford vs. Fitness International, LLC	Motion to Terminate Arbitration Plaintiff Joshua Stafford's motion to terminate arbitration is denied. Code Civ. Proc., § 1281.98 provides that if the drafting party of an arbitration agreement fails to pay certain fees and costs associated with an employment or consumer arbitration, the drafting party is in material breach of the agreement and waives its right to compel the employee to arbitrate his claims. In this matter, Defendants' payment of arbitration fees was due on 2/5/26; Defendants were late and paid the fees on 2/10/26. (Trostad Decl., Exs A-D.) Plaintiff thus argues that pursuant to Code Civ. Proc., § 1281.98, Defendants waived their right to arbitration by willfully failing to timely pay the required fees. Defendants submit evidence in opposition that counsel's failure to remit the filing fees was not willful given that the correspondence regarding payment was not addressed to all members of Defendants' litigation team pursuant to the operative service list. (David Decl., ¶¶ 5-9.) Once Defense counsel was included on the emails between Plaintiff's counsel and AAA, it paid the invoice for the required fees. (David Decl., ¶ 11.) Recently the California Supreme Court in <i>Hohenshelt v. Superior Court</i> (2025) 18 Cal.5th 310, addressed the application of § 1281.98 to a situation like this, where the defendant failed to timely pay the arbitration fees. The Court held that "under general contract law principles as under section 1281.98, a drafting party cannot avoid discharging the other party's contractual duty to proceed in arbitration if it willfully withholds fees necessary to move arbitration forward," however, "if the drafting party acted in good faith, it may seek relief... and its claim should be evaluated under the usual principles in law and equity governing relief from forfeiture or default, including whether the other party has been prejudiced." (<i>Id.</i> at 344.) The Court reversed the Court of Appeal's Order which found that because payment was untimely, the arbitration stay should be lifted. (<i>Id.</i> at 349.) Based on the foregoing, the Court denies Plaintiff's motion to terminate the arbitration. Neither willfulness, nor prejudice has been shown. Defendants shall give notice.